

MINUTES
HUNTINGTON BEACH BOARD OF ZONING ADJUSTMENTS

Room B-8 - Civic Center
2000 Main Street
Huntington Beach, California

WEDNESDAY, SEPTEMBER 13, 1978 - 1:15 PM

BOARD MEMBERS PRESENT: LIPPS, EADIE, CROSBY

CITY STAFF PRESENT: MEL OTT, FIRE DEPARTMENT

MINUTES: ON MOTION BY CROSBY AND SECOND BY EADIE THE MINUTES OF THE REGULAR MEETING OF AUGUST 30, 1978, WERE APPROVED AS TRANSCRIBED, BY THE FOLLOWING VOTE:

AYES: EADIE, CROSBY
NOES: NONE
ABSENT: LIPPS

REGULAR AGENDA ITEMS:

ADMINISTRATIVE REVIEW NO. 78-80 (Cont. from 9-6-78)
Applicant: Mola Development Company

To permit construction of two commercial buildings with total of 26,000 square feet, located on the south side of Adams Avenue approximately 150 feet west of Beach Boulevard in a C2, Community Business District.

This request is covered by Negative Declaration No. 78-97. Chairman Eadie opened the public hearing on the negative declaration request. Jerry Simon was present to represent the applicant, but no one was present to speak for or against the subject proposal; the public hearing was closed.

No amended plans have been received as requested, and the Board reviewed the plan with the applicant. A fully dimensioned plan should be submitted, and Bruce Crosby outlined some changes the Traffic Department would like to see on the project; e.g., sight distance calcs are required for the entry off Adams, the entry drive should be modified to an at-grade type entry, and the drive radius should be increased to 12 or 15 feet instead of the 8-foot radius shown on the plan at present. It was the consensus to continue to permit submittal of said revised layout.

ON MOTION BY EADIE AND SECOND BY LIPPS ADMINISTRATIVE REVIEW NO. 78-80 AND NEGATIVE DECLARATION NO. 78-97 WERE CONTINUED TO THE

REGULAR MEETING OF SEPTEMBER 20, 1978, BY THE FOLLOWING VOTE:

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

CONDITIONAL EXCEPTION NO. 78-51 (In Conj./AR 78-74)
Applicant: Charles W. Poss/James D. Foss

To permit a reduction in the required six (6) percent landscaping for a contractor's equipment yard located on the east side of Gothard Street approximately 800 feet north of Talbert Avenue in an M1-CD, Light Manufacturing, Civic District.

This project is a Categorical Exemption, Class 5, California Environmental Quality Act, 1970.

Chairman Eadie opened the public hearing. James D. Foss was present at the meeting and restated his position that the depth of the property and the lack of visibility into the interior preclude the necessity for any more extensive landscaping. He also indicated that he did not feel the City should require dedication and landscaping along the precise planned future Metzler Lane at this time.

Sam Fazoola, representing the owner of abutting property, addressed the Board to ask for clarification on how the subject proposal would affect access to that abutting parcel.

There being no other persons to address the Board, the public hearing was closed.

Walt Lipps noted that the revised plan received on September 12, 1978, delineates 2,700 square feet of landscaping as opposed to the approximately 11,000 square feet which the code would require for a parcel of this size. Dave Eadie informed the applicant that the dedication would be required on Metzler Lane. Further discussion ensued.

ON MOTION BY LIPPS AND SECOND BY EADIE CONDITIONAL EXCEPTION NO. 78-51 WAS DENIED FOR THE FOLLOWING REASONS, BY THE FOLLOWING VOTE:

REASONS FOR DENIAL:

1. Granting of the conditional exception request would constitute the granting of special privilege not enjoyed by other properties in the vicinity and under the same zoning classification, which are required to comply with the code requirements.
2. Denial of the request does not deprive the applicant of one or more substantial property rights.

3. As this property is located within a Civic District designed to place additional aesthetic control over properties abutting the public park, the Board has found the requested reduction in landscaping to be unwarranted and without justification.

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

ADMINISTRATIVE REVIEW NO. 78-74 (In Conj./CE 78-51)
Applicant: Charles W. Poss/James D. Foss

To permit establishment of a contractor's equipment yard located on the east side of Gothard Street approximately 800 feet north of Talbert Avenue in an M1-CD, Light Manufacturing District.

This request is covered by Negative Declaration No. 78-69.

Chairman Eadie opened the public hearing on the Negative Declaration request. James Foss was present at the meeting. There being no persons to address the Board on the request, the public hearing was closed.

The Board reviewed the information contained in the Negative Declaration request and the transmittal from the Environmental Resources Division.

ON MOTION BY EADIE AND SECOND BY LIPPS THE BOARD, HAVING FOUND THAT THE PROPOSED USE WOULD NOT HAVE A SIGNIFICANT ADVERSE EFFECT ON THE PHYSICAL ENVIRONMENT, ADOPTED NEGATIVE DECLARATION NO. 78-89, BY THE FOLLOWING VOTE:

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

In view of the denial of the conditional exception for reduced landscaping and the lack of delineation of the future Metzler Lane, it was the consensus of the Board that the Administrative Review could not be approved.

ON MOTION BY EADIE AND SECOND BY LIPPS ADMINISTRATIVE REVIEW NO. 78-74 WAS DENIED WITHOUT PREJUDICE, BY THE FOLLOWING VOTE:

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

USE PERMIT NO. 78-58

Applicant: J. Don Hartfelder

To permit construction of a 2,000 square foot building to house a retail nursery and flower shop located on the northwest corner of Beach Boulevard and Liberty Avenue in a C4, Highway Commercial District.

This request is covered by Negative Declaration request No. 78-98.

Chairman Eadie opened the public hearing on the negative declaration and the use permit. Don Hartfelder was present at the meeting. The Board reviewed the information contained in the negative declaration request form and considered mitigating measures applicable to the project, in particular the Environmental Division's recommendation for retention of the mature trees on the property. After review, it was the Board's determination that the developer should be permitted the alternative action of providing replacement trees because of the difficulty of modifying the drive and providing adequate parking onsite if the layout were changed to retain all the trees presently existing.

There being no persons to address the Board in regard to the project, the public hearing was closed.

ON MOTION BY EADIE AND SECOND BY LIPPS THE BOARD, HAVING FOUND THAT THE PROPOSED PROJECT WILL NOT HAVE A SIGNIFICANT ADVERSE EFFECT ON THE PHYSICAL ENVIRONMENT, ADOPTED NEGATIVE DECLARATION NO. 78-98 WITH THE MITIGATING MEASURES CONTAINED IN CONDITIONS B1 THROUGH B5 IMPOSED ON THE USE PERMIT, BY THE FOLLOWING VOTE:

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

Board review found that required dedication off Liberty Avenue is not depicted on the plan. This dedication will affect the setback of the building and the lot depth and require adjustment in the building siting. The Board took note of the existing non-conforming garage structure, which Mr. Hartfelder indicated was to be used as future storage area. It was the consensus of the Board that any necessary relocation of the garage could be handled through the plan check process.

ON MOTION BY EADIE AND SECOND BY LIPPS USE PERMIT NO. 78-58 WAS APPROVED WITH THE FOLLOWING FINDINGS AND CONDITIONS, BY THE FOLLOWING VOTE:

FINDINGS OF THE BOARD:

1. The establishment, maintenance, and operation of the use will not be detrimental to the general welfare of persons residing or working in the vicinity or injurious to property and improvements in the area.
2. The granting of the use permit will not adversely affect the General Plan of the City of Huntington Beach.
3. The proposal is consistent with the City's General Plan of Land Use.

CONDITIONS OF APPROVAL:

A. TO BE COMPLETED PRIOR TO ISSUANCE OF BUILDING PERMITS:

1. The conceptual site plan received and dated September 12, 1978, shall be the approved layout, subject to the modifications described herein:
 - a. The plan shall reflect the required five (5) feet of dedication off Liberty Avenue.
 - b. The plan shall reflect the required ten (10) foot setback from Liberty Avenue.
 - c. The landscape planter along the street side property lines shall reflect an inside dimension of at least six (6) feet.

A plan delineating said modifications shall be submitted to the Department of Building and Community Development upon application for building permits. Copies of the corrected plan shall also be submitted to the Planning Department and the Department of Public Works.

NOTE: The present entitlement does not condone the location of the existing garage, which may be nonconforming. If modifications to that garage need to be made, the necessary change is sanctioned by the Board.

In its approval action, the Board of Zoning Adjustments considered the following issues relating to the conceptual plan:

- . Traffic circulation and drives;
- . Parking layout;
- . Lot area;
- . Lot width and lot depth;
- . Type of use and its relation to property and improvements in the immediate vicinity;
- . Past administrative action regarding this property.

B. TO BE COMPLETED PRIOR TO FINAL INSPECTION:

1. Ten (10) 24" box trees in addition to the standard landscaping requirements shall be placed on the site at locations subject to the approval of the Department of Public Works.
2. Natural gas shall be stubbed in at the locations of cooking facilities, water heaters, and central heating units.
3. Low-volume heads shall be used on all spigots and water faucets.
4. All building spoils, such as unusable lumber, wire, pipe, and other surplus or unusable material, shall be disposed of at an offsite facility equipped to handle them.
5. If outside lighting is included onsite, high-pressure sodium vapor lamps shall be used to prevent "spillage" onto adjacent areas and for energy saving.

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

CONDITIONAL EXCEPTION NO. 78-49
Applicant: Roger Juillet

To permit the construction of a six (6) foot high block wall within the 10 foot corner cutoff on a reverse corner lot located on the northeast corner of Polder Circle and Hague Lane in an R1, Low Density Residential District.

This request is a Categorical Exemption, Class 5, California Environmental Quality Act, 1970.

Chairman Eadie opened the public hearing. Roger Juillet was present at the meeting. There being no persons present to speak for or against the proposal, the public hearing was closed.

Board review took into consideration the conditions prevailing at the time the tract in which the subject property is located was originally constructed and what effect the wall might have on sight distance for adjoining driveways.

ON MOTION BY EADIE AND SECOND BY CROSBY CONDITIONAL EXCEPTION NO. 78-49 WAS APPROVED WITH THE FOLLOWING FINDINGS AND CONDITIONS, BY THE FOLLOWING VOTE:

FINDINGS OF THE BOARD:

1. The granting of the Conditional Exception will not constitute the grant of special privilege, as the original construction of the tract would have permitted a wall or fence to be built in the requested configuration and other walls in the immediate vicinity are constructed according to the original entitlement.
2. The driveway on the adjacent lot is located easterly of the subject property far enough to ensure that adequate sight distance is maintained for that drive.
3. Granting of the Use Permit allows the applicant to achieve parity with surrounding properties in the vicinity under the same zoning classification.
4. Granting of the Conditional Exception will not be materially detrimental to the public welfare or injurious to property in the area.
5. The granting of the Conditional Exception will not adversely affect the General Plan of the City of Huntington Beach.

CONDITIONS OF APPROVAL:

A. TO BE COMPLETED PRIOR TO ISSUANCE OF PERMITS:

1. The site plan received and dated August 23, 1978, shall be the approved layout.

In its approval action, the Board of Zoning Adjustments considered the following issues relating to the conceptual plan:

- . Traffic circulation and drives;
- . Type of use and its relation to property and improvements in the immediate vicinity;
- . Past administrative action regarding this property.

AYES: EADIE, CROSBY
NOES: LIPPS
ABSENT: NONE

CONDITIONAL EXCEPTION NO. 78-53

Applicant: Dennis Lambert

To permit construction of three garages with zero side yard setback in lieu of the required five (5) foot setback and a 6-inch reduction in a required 25-foot turning radius on property located on the south side of Cypress Avenue approximately 88 feet west of Elm Street in an R2, Medium Density Residential District.

This request is a Categorical Exemption, Class 5, California Environmental Quality Act, 1970.

Chairman Eadie opened the public hearing. Leonard Lichter was present to represent the applicant. There were no persons present to address the Board in regard to this request, and the public hearing was closed.

Walt Lipps reported that the plan complies with code in all other respects than the requested variance. The Board reviewed the layout, considering how the zero wall was to be maintained.

ON MOTION BY LIPPS AND SECOND BY EADIE CONDITIONAL EXCEPTION NO. 78-53 WAS APPROVED WITH THE FOLLOWING FINDINGS AND CONDITIONS, BY THE FOLLOWING VOTE:

FINDINGS OF THE BOARD:

1. The ratio of lot width to lot depth on this particular property is such that strict compliance with the code would make it difficult for the developer to provide the required parking and access to the property for emergency vehicles.
2. The granting of the Conditional Exception will not constitute the grant of special privilege.
3. The granting of the Conditional Exception will not be materially detrimental to the public welfare or injurious to property in the same zoning classification.
4. The granting of the Conditional Exception will not adversely affect the General Plan of the City of Huntington Beach.

CONDITIONS OF APPROVAL:

A. TO BE COMPLETED PRIOR TO ISSUANCE OF BUILDING PERMITS:

1. The conceptual site plan received and dated September 1, 1978, shall be the approved layout:

In its approval action, the Board of Zoning Adjustments considered the following issues relating to the conceptual plan:

- . Traffic circulation and drives;
- . Parking layout;
- . Lot area;
- . Lot width and lot depth;
- . Type of use and its relation to property and improvements in the immediate vicinity;
- . Past administrative action regarding this property.

2. The applicant shall obtain a three (3) foot wide maintenance easement from the property abutting the zero

property line construction, or the garage walls on the zero property line shall be constructed of maintenance-free masonry material.

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

ADMINISTRATIVE REVIEW NO. 78-83
Applicant: Warren Lortie/Bob Jarrard

To permit construction of a 6,500 square foot medical professional office building located at the southeast corner of Florida and Kartron Streets in an R5, Office Professional District.

This request is covered by Negative Declaration No. 78-101.

Warren Lortie and Bob Jarrard were present. Chairman Eadie opened the public hearing on the negative declaration request. The Board reviewed the information contained in the negative declaration and considered the suggested mitigating measures forwarded by the Environmental Resources Division.

ON MOTION BY EADIE AND SECOND BY CROSBY THE BOARD, HAVING FOUND THAT THE PROPOSED PROJECT WILL NOT HAVE A SIGNIFICANT ADVERSE EFFECT UPON THE PHYSICAL ENVIRONMENT, ADOPTED NEGATIVE DECLARATION NO. 78-101, WITH THE MITIGATING MEASURES CONTAINED IN CONDITIONS B1 THROUGH B5 IMPOSED ON THE ADMINISTRATIVE REVIEW, BY THE FOLLOWING VOTE:

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

Bob Jarrard reviewed the status of Kartron Street for the Board's information and explained the reason for the landscaping and street section as shown. The Board reviewed the layout, considering the trash disposal location in regard to accessibility and its relationship to the parking spaces. Dave Eadie noted that inner circulation among the subject project's parking lot and lots which will be adjacent when the remaining properties develop would be desirable and asked if the developers would agree to reciprocal easements for that purpose. Mr. Jarrard concurred, with the proviso that he not be required to grant unilateral agreements without the assurance that the other properties would also be required to provide easements.

ON MOTION BY EADIE AND SECOND BY CROSBY ADMINISTRATIVE REVIEW NO. 78-83 WAS APPROVED WITH THE FOLLOWING CONDITIONS, BY THE FOLLOWING VOTE:

CONDITIONS OF APPROVAL:

A. TO BE COMPLETED PRIOR TO ISSUANCE OF BUILDING PERMITS:

1. The conceptual site plan received and dated August 22, 1978, shall be approved layout, subject to the following modification:

The trash enclosure shall be moved in such a manner that its longer dimension is parallel to Florida Street, thus increasing the depth of parking spaces 51 and 52.

The modification noted above shall be delineated upon the plan submitted to the Department of Building and Community Development upon application for building permits.

NOTE: No signs are included as part of this entitlement.

In its approval action, the Board of Zoning Adjustments considered the following issues relating to the conceptual plan:

- . Traffic circulation and drives;
 - . Parking layout;
 - . Lot area;
 - . Lot width and lot depth;
 - . Type of use and its relation to property and improvements in the immediate vicinity;
 - . Past administrative action regarding this property.
2. A landscape plan shall be submitted to the Secretary of the Board for review and approval. Said plan shall comply with Article 979 of the Huntington Beach Ordinance Code and landscaping specifications on file in the Department of Public Works.
 3. A Tentative Parcel Map for consolidation of the lots shall be filed with the City Planning Department.
- B. TO BE COMPLETED PRIOR TO FINAL INSPECTION:
1. Kartron Street shall be posted "Fire Lane - No Parking."
 2. Natural gas shall be stubbed in at the locations of cooking facilities, water heaters, and central heating units.
 3. All building spoils, such as unusable lumber, wire, pipe, and other surplus or unusable material, shall be disposed of at an offsite facility equipped to handle them.
 4. If lighting is included in parking areas, high-pressure sodium vapor lamps shall be used for energy saving. Outside lighting shall be sufficiently shielded to prevent "spillage" or glare onto surrounding residential property.

5. If an onsite septic system is included as part of the project, the applicant shall file a report of waste discharge and obtain a permit from the California Regional Water Quality Control Board in accordance with the attached Guidelines for Sewage Disposal from Land Developments.

C. TO BE COMPLETED PRIOR TO CERTIFICATE OF OCCUPANCY:

1. The Tentative Parcel Map consolidating the lots shall be recorded and proof of recordation submitted to the City.
2. An irrevocable offer of dedication for reciprocal easements for circulation over and across subject property to the adjacent properties shall be submitted to the City Attorney for approval as to form and content. This offer shall become void in the event that adjacent property owners do not agree to submit like easements for interior circulation over and across their properties for the benefit of the subject development within then (10) years of this date.

AYES: LIPPS, EADIE, CROSBY
NOES: NONE
ABSENT: NONE

Chairman Eadie left the meeting at this point.

MISCELLANEOUS AGENDA ITEMS:

ADMINISTRATIVE REVIEW NO. 78-78
Applicant: Harbour Pacific Ltd.

To permit specified dwellings within Tract 8636 to be constructed at zero setback on one side of the lots on property located on the south side of Trinidad Lane approximately 1000 feet south of Edinger Avenue in an R1, Low Density Residential District.

Secretary Lipps explained that the proponents have not submitted a verifying letter to their verbal request for withdrawal of this application at the meeting of September 6, 1978. It will, therefore, be necessary for the Board to reconsider its prior action.

ON MOTION BY LIPPS AND SECOND BY CROSBY THE BOARD DETERMINED TO RECONSIDER ADMINISTRATIVE REVIEW NO. 78-78 BY THE FOLLOWING VOTE:

AYES: LIPPS, CROSBY
NOES: NONE
ABSENT: EADIE

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No response has been received from the applicant, either on the letter of verification of withdrawal or in regard to elevations and a perspective drawing as required; therefore, the Board has insufficient information available to permit action on the project.

ON MOTION BY LIPPS AND SECOND BY CROSBY ADMINISTRATIVE REVIEW NO. 78-78 WAS DENIED WITHOUT PREJUDICE, BY THE FOLLOWING VOTE:

AYES: LIPPS, CROSBY
NOES: NONE
ABSENT: EADIE

ADMINISTRATIVE REVIEW NO. 78-87
Applicant: Frank H. Ayres Construction

Special Event request to permit a rummage sale of sailboats to be held for 21 days beginning September 30, 1978, on property located at the southwesterly corner of Bushard and Brookhurst Streets in an R1, Low Density Residential District. Rummage sale will be a fund raising enterprise for the benefit of the USC Sailing Team.

The request was reviewed by the Board.

ON MOTION BY LIPPS AND SECOND BY CROSBY ADMINISTRATIVE REVIEW NO. 78-87 WAS APPROVED WITH THE FOLLOWING CONDITIONS, BY THE FOLLOWING VOTE:

CONDITIONS OF APPROVAL:

1. The location and request received and dated September 11, 1978, shall be the approved layout.
2. The applicant shall obtain all necessary electrical permits.
3. An onsite inspection by the Fire Department shall be required prior to the event.
4. A certificate of insurance form shall be filed in the License Division of the Finance Department ten (10) days prior to the event.

AYES: LIPPS, CROSBY
NOES: NONE
ABSENT: EADIE

PERMIT NO. A-18520
Applicant: Saint Vincent de Paul Church

Extension request for a permit for the use of a temporary trailer as a church office pending completion of permanent facilities on

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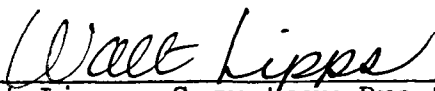
property located at the northwest corner of Newland Street and Talbert Avenue.

Secretary Lipps outlined the requested use and the future plans of the church.

ON MOTION BY CROSBY AND SECOND BY LIPPS THE BOARD GRANTED AN EXTENSION OF TIME FOR USE OF A TEMPORARY TRAILER AS A CHURCH OFFICE TO OCTOBER 6, 1979, BY THE FOLLOWING VOTE:

AYES: LIPPS, CROSBY
NOES: NONE
ABSENT: EADIE

THERE BEING NO FURTHER BUSINESS, THE MEETING WAS ADJOURNED.



Walt Lipps, Secretary Pro Tem

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